

26STCP01276 26STCP01276

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Case Number: 26STCP01276 Hearing Date: June 23, 2026 Dept: 300

CASE NUMBER: 26STCP01276

CASE NAME: Glaser Weil Fink Howard Jordan &

Shapiro, LLP vs. Sacramento Equity Fund VX LLC

TYPE OF MOTION: Petition to Confirm Arbitration Award

FILING PARTY: Petitioner Glaser Weil Fink

Howard Jordan & Shapiro LLP

RESPONDING

PARTY: Unopposed

HEARING DATE: June 23, 2026

Case Background

Petitioner Glaser Weil Fink Howard Jordan & Shapiro

LLP (Petitioner) seeks to confirm an arbitration award issued on January 14, 2026.

On March 30, 2026, Petitioner filed the instant

petition to confirm arbitration award against Respondent Sacramento Equity Fund

VX LLC (Respondent). The petition is unopposed.

On May 5, 2026, Petitioner filed a proof of service

indicating that Respondent was served by personal service on May 5, 2026.

Instant Pleading

Petitioner seeks an order confirming the arbitration

award issued on January 14, 2026.

Decision

The petition to confirm arbitration award is GRANTED.

Discussion

Petitioner seeks an order confirming the arbitration

award issued on January 14, 2026. The arbitration award awarded Petitioner the

total sum of \$208,211.06 against Respondent. (Petition, ¶ 8; Attachment 8(c).)

“Any party to an arbitration in which an award has been

made may petition the court to confirm, correct or vacate the award. The

petition shall name as respondents all parties to the arbitration and may name

as respondents any other person bound by the arbitration award.” (Code Civ.

Proc., § 1285.) “If a petition or response under this chapter is duly served

and filed, the court shall confirm the award as made, whether rendered in this

state or another state, unless in accordance with this chapter it corrects the

award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

Filing Requirements of a Petition to Confirm

Arbitration Award

Code of Civil Procedure § 1285.4 states: “A petition

under this chapter shall:

a. Set

forth the substance of or have attached a copy of the agreement to arbitrate

unless the petitioner denies the existence of such an agreement

b. Set

forth the names of the arbitrators.

c. Set

forth or have attached a copy of the award and the written opinion of the

arbitrators, if any.”

(Code Civ. Proc., § 1285.4 (emphasis added).)

Here, Petitioner has attached a copy of the relevant

arbitration agreement to the instant petition. (Petition ¶ 4, Attachment 4(b).)

The arbitrator was the Hon. Mitchell Beckloff (Ret.). (Petition, ¶ 6.) Finally,

Petitioner has attached a copy of the arbitration award. (Petition, ¶ 8,

Attachment 8(c).)

Accordingly, the Court finds that Petitioner has

satisfied the requirements of Code of Civil Procedure section 1285.4.

Service of the Petition and Notice of Hearing

Code of Civil Procedure § 1290.4 states in pertinent

part:

a. A

copy of the petition and a written notice of the time and place of the hearing

thereof and any other papers upon which the petition is based shall be served

in the manner provided in the arbitration agreement for the service of such

petition and notice.

b. If

the arbitration agreement does not provide the manner in which such service

shall be made and the person upon whom service is to be made has not previously

appeared in the proceeding and has not previously been served in accordance

with this subdivision: ¶ (1) Service within this State shall be made in the

manner provided by law for the service of summons in an action.

(Code Civ. Proc., § 1290.4.)

Here, the Petition was filed on March 30, 2026. The

proof of service filed on May 5, 2026, indicates that Respondent was served by

personal service with a copy of the Petition and notice of hearing.

Timing and Service of the Arbitration Award

Code of Civil Procedure § 1283.6 provides that: “The

neutral arbitrator shall serve a signed copy of the award on each party to the

arbitration personally or by registered or certified mail or as provided in the

agreement.” This requirement may be satisfied by service by the arbitrator or

upon proper service of the Award with the Petition. (See *Murry v. Civil*

Service Employees Ins. Co. (1967) 254 Cal.App.2d 796, 799-800.)

A party may not seek a court judgment confirming an

arbitration award by filing and service a petition no more than four years, but

not less than 10 days, after the award is served. (Code Civ. Proc., §§ 1288,

1288.4.)

Here, the Petition states that the arbitration award

was made on January 14, 2026. (Petition, ¶ 8.) A copy of the award is attached

as Exhibit 8(c). The award is signed by the arbitrator, the Hon. Mitchell

Beckloff, and was served on January 14, 2026. (Petition, ¶ 9; Attachment 8(c).)

Accordingly, Petitioner has timely sought confirmation of the arbitration

award.

Merits of the Petition to Confirm Arbitration

Award

The court must confirm the award as made, unless it

corrects or vacates the award, or dismisses the proceeding. (Code Civ. Proc., §

1286; Valsan Partners Limited Partnership v. Calcor Space Facility, Inc. (1994)

25 Cal.App.4th 809, 818.) “[A]n award reached by an arbitrator pursuant to a

contractual agreement to arbitrate is not subject to judicial review except on

the grounds set forth in [Code of Civil Procedure sections 1286.2 and 1286.6].”

(Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 33.) Code of Civil

Procedure sections 1286.2 and 1286.6 provide nine statutory grounds that permit

for the correcting or vacating of an arbitration award. (See Code Civ. Proc.,

§§ 1286.2, 1286.6.)

The instant petition is unopposed. “A failure to oppose

a motion may be deemed a consent to granting the motion.” (Cal. Rules of Court,

rule 8.54.)

Petition has demonstrated that on January 14, 2026, the

arbitrator issued an arbitration award in their favor and against Respondent in

the total amount of \$208,211.06. Petitioner has attached a copy of the award

stating the total amount of the award. (Petition, Attachment 8(c).) “[O]nce a

petition to confirm that meets the statutory requirements has been served, the

burden is on the party attacking the award to affirmatively establish the

existence of error.” (Valencia v. Mendoza (2024) 103 Cal.App.5th 427,

442 [internal quotations omitted].) Notably, since the petition is unopposed,

Respondent has not established any ground for vacating the award.

Interest

“Petitioner requests that the Court award

post-award/prejudgment interest of \$9,131.81 on the entire amount of the Final

Award at the rate of ten percent (10%) per annum from the January 14, 2026

issuance date of the Final Award until the June 23, 2026 hearing date of the

Petition and post-award/prejudgment interest in the amount of \$57.04 per diem

from the June 23, 2026, hearing date of the Petition until date of entry of

judgment.” (Motion, p. 3.)

As noted by the court in *Pierotti v. Torian*

(2000) 81 Cal.App.4th 17:

In *Britz, Inc. v. Alfa-Laval Food & Dairy*

Co. (1995) 34 Cal.App.4th 1085 (*Britz*), the court held that a

successful party to arbitration is entitled to post-award, pre-judgment

interest under Civil Code section 3287, subdivision (a). The *Britz* court

held that a successful party to an arbitration is entitled to “recover damages

certain” within the meaning of section 3287, subdivision (a) on the date the

arbitrator renders his award. (*Id.* at p. 1106.) The court

noted that “[t]he arbitration award itself result[s] in a new and fixed

liability [citation]. Regardless of the individual elements

that comprised that liability, respondents were entitled to payment of the fixed sum upon issuance of the award. [¶].... Although the interest was pre-'judicial judgment,' it was post-'contractual judgment.' Any result that denied respondents this post-award interest would punish them for using arbitration instead of the court system to resolve their dispute with appellants." (Id. at p. 1107.)

(Pierotti v. Torian (2000) 81 Cal.App.4th 17, 27.)

Here, Petitioner was awarded the total amount \$208,211.06 when the initial award was issued. Petitioner requests interest starting from January 14, 2026, through June 23, 2026, at a rate of 10% per year. This amounts to a total of \$9,131.81 in post-award, pre-judgment interest.

Attorney Fees and Costs

Petitioner seeks an award of attorney fees and costs incurred in seeking to confirm the arbitration award. (Petition, ¶ 10(e)-(f).)

Here, the relevant engagement agreement between the parties provides:

In the event that a dispute of any nature, whatsoever, contractual or non-contractual, arises between you and the Firm (with the

exception of those incurred in connection with a fee arbitration or mediation under Business and Professions Code Sections 6200 et seq.), the prevailing party in any resulting arbitration or other legal action shall be awarded reasonable attorneys' and paralegals' fees and all other reasonable costs and expenses of any sort, including, without limitation, all expert fees and costs.

(Stone Decl., ¶ 2, Exhibit 1, Engagement Agreement,

Provision 11 at p. 23.)

Accordingly, the Court finds that Petitioner is entitled to an award of attorney fees and costs incurred in connection with the instant Petition.

Conclusion

Based on the foregoing, the petition to confirm arbitration award is GRANTED.